KNOXON INVESTMENTS (PRIVATE) LIMITED
versus
TERRATECH MACHINERY SA (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 1 June & 3 June 2026

APPLICATION FOR RESCISSION OF JUDGMENT

Z. Nkomo with *A. Chihombori* and *G. Mudimu*, for the applicant
P. Mahembe, for the respondent

SIZIBA J:

[1] On 2 March 2026, the applicant filed an application seeking to rescind the default judgment that was granted by this court against it on 19 February 2026 under case number HCMTC152/25. The application is in terms of r 27(1) of the High Court Rules, 2021. In the said default judgment, the Sheriff of this court was ordered to release two SANY excavators to the plaintiff with serial numbers SY037UCD32268 and SY037BCA38318. The applicant was also ordered to pay respondent's costs of suit at attorney and client scale. The respondent is opposed to the application for rescission.

[2] The requirement to be satisfied by the applicant in terms of r 27 (2) of the High Court Rules, 2021 is that good and sufficient cause must be shown for the default judgment to be rescinded. Even common law demands no less than such. Good and sufficient cause is demonstrated by the reasonableness of the explanation for the default, the *bona fides* of the application to rescind judgment and the *bona fide* defense on the merits which carries some prospects of success. See *Deweras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1998 (1) ZLR 368 (SC).

[3] In the present matter, the explanation of the default advanced by the applicant is that it was not notified of the date of trial. It is said that the notification which was sent by the Registrar

indicated on the face of it that the set down was for a pre-trial conference. It is common cause that a pre-trial conference had been held and that the matter had already been referred to trial by a judge. The supporting affidavit was deposed to by Mr *Mehluli Tshuma* whereas the legal practitioner who was seized with the matter was said to be Mr *Enock Mahlaure*. No supporting affidavit was deposed to by Mr *Enock Mahlaure*, the very legal practitioner who was said to be seized with the case at the material time. Applicant's legal practitioner who deposed to the supporting affidavit concedes that he did receive the e-mail notifying them of the trial date. He says that he did not open to read the contents of the notice of hearing. Apparently, the notice of hearing was explicit in its contents that it was for trial.

[4] It was submitted by Mr *Nkomo* that they believed that the system was updating itself since a pre–trial conference had already been held. Such was said to be a reasonable explanation for the default in failing to attend court on the trial date. On the other hand, Mr *Mahembe* submitted that the applicant's explanation for the default was unreasonable. He took the view that applicant's legal practitioners had no reason to attempt to put blame upon the Registrar of the court when they acknowledge that they received the notice of set down for trial which they chose not to read. He further submitted that there was no reason to make assumptions over the notification for hearing that applicant's lawyers received. He said that the law will help the vigilant and not the sluggard.

[5] A party to a live court dispute who receives notification to attend court from the Registrar has a privilege and a duty to attend court for the hearing so as to safeguard his or her interests in the outcome of such hearing. Failure to attend court without proper arrangements or communication to cater for such hearing will always have adverse consequences to a litigant. All legal practitioners know this very well. A litigant is expected to attend court when notified to do so notwithstanding whatever they perceive the purpose of the hearing to be about. This imperative approach was well expressed by MATHONSI J (as he then was) in *Sibindi* v *Municipality of Victoria Falls* HB 85/17 at p 6 as follows:

"In any event, a legal practitioner is not at liberty to ignore notification of set down merely because the notice does not state what has been set down. By the same token he or she is not at liberty to stay away from court if he forms an opinion that the notice is defective. It is his duty to attend court and raise whatever objections he may have against the set down or the process served upon him."

[6] In the present scenario, I do not see any valid excuse for the failure by the applicant and its legal practitioners to attend court on the date that was set for trial. The applicant was duly notified of the set down date through its legal practitioners. Service of court process to a litigant's legal practitioner of record is effective because it is the legal practitioner who has got the expertise to understand the exigencies of the notification as well as a duty to inform his client to attend court. If the casual approach that was adopted by the applicant's legal practitioners in this case was to be countenanced by this court to any degree, great inconvenience would be caused to the court schedule and to the other litigants and infact, court business would practically come to a halt. I therefore reject the submission that the applicant has proffered a reasonable explanation for its default of appearance on the trial date. I am persuaded by Mr *Mahembe*'s submission that the law will help the vigilant and not the sluggard as expressed in the Latin maxim *vilantibus non dormientibus dura subveniunt*.

[7] Regarding the prospects of success, the applicant's contention is that it owns the two excavators basing on the fact that these machines were listed in its asset register. It says that they originated from their director who had an obligation to source the said machinery. This position is taken by the applicant in its Plea that was filed in HCMTC152/25. The applicant is the author of such asset list or register. The applicant says that the Chinese national Meng Wuwen whom respondent says had leased the machines from it was its employee. The applicant has said that it does not make sense that the respondent would have leased the machines to Meng Wuwen in September 2023 when some of the invoices for purchasing the same machines were dated in March 2024.

[8] The applicant has no defense on the merits. The respondent's case was a vindicatory action for the recovery of its machines. The respondent's proof of ownership of the two excavators are its invoices and receipts which clearly show that it purchased the excavators in question

from Sany Equipment Zimbabwe (Private) Limited. Moreover, there is a letter from the said company that confirms that it did supply or sell the said machines to the respondent. All such documents were discovered in the main case in which the applicant seeks to rescind the default judgment. The lease agreement with Meng Wuwen to whom the excavators were leased is also there. It was signed in September 2023. The passport for Meng Wuwen was stamped for arrival in this country on 23 September 2023 and he was given thirty days to stay in this country as a visitor. The fact that the respondent paid another instalment in March 2024 does not advance the applicant's case as the first payment or deposit for purchasing the machines was made by the respondent in September 2023 and that is when the respondent says that it took delivery of the machines and then leased them to Meng Wuwen.

[9] The respondent's claim that it owns these machines is based on concrete evidence which establishes the origin of these machines. As submitted by Mr *Mahembe*, the respondent has tendered documents which clearly describe the make, model, dates of manufacture and serial numbers of the excavators. Where ownership is in issue, it is logical that the position of a party who avails receipts and invoices as proof of purchase of the property from the original source or supplier is invincible and such position cannot be upset by evidence proving mere possession of the property.

[10] On the other hand, the applicant has failed to establish the origin of these machines in its founding affidavit. In his oral submissions, Mr *Nkomo* resorted to saying that the applicant also claims to have purchased the same machines and that it will produce the receipts at the trial. This submission was tantamount to counsel giving evidence from the bar on a position that applicant had not alluded to in its founding affidavit. Worse still, the applicant has no documentary evidence to prove having purchased these machines. What comes out clearly to this court is that the respondent is the owner of the machines and it is entitled to have them. On the other hand, the applicant has no valid or genuine defense to the respondent's claim of *rei vindicatio*. The application for rescission fails to satisfy all the requirements of the law and it must fail. I also find merit in the respondent's prayer for

costs at attorney and client scale given the extent to which this application lacked merit from its inception. The respondent has been unnecessarily put out of pocket. I therefore order as follows:

(a) The application is hereby dismissed for lack of merit.

(b) The applicant shall bear the respondent's costs at the legal practitioner and client scale.

Chinamasa Mudimu and Chinongwenya, applicant's legal practitioners
Mahembe Attorneys, respondent's legal practitioners